SAGITTARIUS IP

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European Patent Office
80298 Munich
GERMANY

Our Ref: SHA-C-P3562EP

05 December 2025

Dear Sir/Madam

Re: European Patent Application Number 21901537.7
in the name of Shattuck Labs, Inc

Further to the Official Communication pursuant to Rules 70(2) and 70a(2) EPC dated 06 June 2025, we herein enclose the following response:

We herein confirm that we wish to proceed further with substantive examination of the above referenced patent application. We also enclose amended claims intended to accelerate prosecution of the above referenced patent application.

Claim Amendments
We enclose manuscript amended and retyped claims 1 to 15 intended to replace claims 1 to 15 previously on file. Specifically, the basis is provided in respect of the international application PCT/US2021/061834, and is set out in the following table:

Amended claim	Basis
1	Previous claim 9; PCT claims 98-99
2	Previous claim 10; PCT claim 101
3	Previous claim 10; PCT claim 102
4	Previous claim 10; PCT claims 103, 105, and 107
5	Previous claim 10; PCT claims 110
6	Previous claim 10; PCT claims 115-118
7	Previous claim 10; PCT claim 119
8	Previous claim 10; PCT claim 120
9	PCT claim 121
10	Previous claim 10; PCT claim 122
11	Previous claim 10; PCT claims 123-124
12	Previous claim 14; PCT claims 150-152
13	Previous claim 15; PCT claims 153-161
14	Previous claim 15; PCT claim 162
15	Previous claim 15; PCT claims 163-173

Previous claims 1-8 and 11-13 have been deleted and all remaining claims and their dependencies have been updated accordingly.

The Applicant respectfully requests that the Examiner reconsider the application in view of the claim amendments and the following remarks.

Unity (Article 82 EPC)
In light of the deletion of claims 4-5 and 8, we submit that the claims as amended are wholly drawn to Invention 1, namely the use of TRIM7 expression to identify cancer cells that are resistant to an anti-PD1 therapy (targeting PD-1, PD-L1 and/or PD-L2) and thus are unified.

Inventive step (Article 56 EPC)
The Applicant thanks the Examiner for acknowledging the inventive step of previous claims 1, 6, 8, 9, and 11.

The Office Action alleges at point 6.3 that previous claims 13-14 lack inventive step because there is no evidence that the therapy or treatments recited in these claims are able to achieve the claimed therapeutic effect in patients with altered TRIM7 expression.

Previous claim 13 has been deleted, and previous claim 14 has been amended to recite a Trim7 modulator for use in a method of treating a cancer in a subject in need thereof. The application discloses the identification of driver genes of resistance to the agent with an ability to inhibit function and/or activity of PD-1, PD-L1 and/or PD-L2 based on the identification of "Differentially Expressed Genes (DEGs) in 4th generation anti-PD-1 resistant cells compared to parental CT 26 cells when grown in the presence of IFNγ" (see page 85 of the PCT Specification as filed). This "analysis identified TRIM family of proteins (especially, Trim7), Mapk8ip1, Elk1, Lrg1, Arg1, to be some of the drivers" (see Example 6 and Figure 6A of the PCT specification as filed).

Given this disclosure, the skilled person would expect that a TRIM7 modulator could be used to treat cancer that is resistant to an agent with an ability to inhibit function and/or activity of PD-1, PD-L1 and/or PD-L2.

Clarity and sufficiency (Articles 83 and 84 EPC)
The Examiner has asserted that it is unclear how the search restriction to TRIM7 will be applied to all claims, especially claims 1-3 and 6-8 which do not explicitly mention TRIM7. Claims 13-14 have also been objected to for a lack of enablement across the whole scope of these claims.

Solely to advance prosecution, all claims have been amended to recite a TRIM7 modulator. We submit that this feature is clearly enabled by at least Example 6 and Figure 6A of the specification as filed for the same reasons as mentioned with respect to inventive step - specifically for disclosing the identification of TRIM7 as driver of resistance to an agent with an ability to inhibit function and/or activity of PD-1, PD-L1 and/or PD-L2.

Exclusions from Patentability (Article 53(a) and (c) EPC)
The Examiner has objected to previous claims 13-14 for being directed to methods of treatment and so excluded from patentability. As discussed above, previous claim 13 has been deleted and previous claim 14 has been reformulated as purpose-related product claim according to the Examiner's interpretation at point 8 of the Search Opinion. Therefore, we submit that the Examiner's objection is overcome.

Claims 6-8 were also deemed to relate to unpatentable subject matter under Article 53(a) EPC. In light of the deletion of these claims, we submit that the Examiner's objection is now moot.

We submit that all the Examiner's objections have been addressed and the claims are in a position for grant. The description will be amended accordingly once an allowable claim set has been agreed with the Examiner.

In case the Examining Division is minded to refuse the application without further opportunity for submissions by the Applicant in writing, then Oral Proceedings are requested.

Yours faithfully

/ELIZABETH POND/

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on behalf of Sagittarius IP (Association No. 352)